

**24STCV04133 24STCV04133**

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-21

Motion: PLAINTIFF'S PETITION FOR MINOR'S COMPROMISE

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Case Number: 24STCV04133 Hearing Date: July 21, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

GEORGE

RUSSELL, a minor, by and through his Guardian ad Litem, JULIE RUSSELL,

Plaintiffs,

vs.

C BARRY BROCK, M.D., an Individual; CLARISSA NIINO, M.D.,  
an Individual; CEDARS-SINAI MEDICAL CENTER, a California Corporation and DOES  
1-30, Inclusive,

Defendants.

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CASE

NO.: 24STCV04133

[TENTATIVE] ORDER RE:

PLAINTIFF'S PETITION FOR MINOR'S COMPROMISE

Dept. 733

8:30 a.m.

July 21, 2026

I.

INTRODUCTION

On February 20, 2024, Plaintiff George Russell, individually, a minor by and through his guardian ad litem, Julie Russell ("Plaintiff"), filed this action against Defendants Barry Brock, M.D. ("Brock"), Clarissa Niino, M.D. ("Niino"), and Cedars-Sinai Medical Center ("Cedars") (together, "Defendants"), alleging a single cause of action for Medical Malpractice.

The Complaint

alleges that Julie Russell ("Julie") sought care and treatment from Defendants for her labor and delivery of her son George Russell ("George"). The Complaint further alleges that due to Defendants' negligence prior to, during, and following George's labor and delivery, George suffered severe injuries to his head, neck and brain, causing subdural bleeding, seizures and hypoxic ischemic

encephalopathy, such that he will be severely neurologically impaired and dependent on others for the remainder of his life, unable to care for himself, earn a living, or live an independent lifestyle.

On March 27, 2026,  
Plaintiff dismissed Niino from this action.

On June 26, 2026,  
Plaintiff filed the instant  
Petition to Approve Compromise of Disputed Claim on behalf of minor George  
("Petition").

No opposition was  
filed.

## II. LEGAL STANDARD

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.) "[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372, subd. (a)(1).) Alternatively, the petitioner may file a declaration demonstrating that he or she has a right to compromise the minor's claim under California Probate Code section 3500.

Regarding the substance of the  
Petition, to obtain court approval of the settlement of a minor's claims, the petitioner must file a complete and  
"verified petition for approval of the settlement and must disclose 'all information that has any bearing upon the reasonableness of the compromise.' [Citations.]" (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256; Cal. Rules of Court, rule 7.950.) (Italics added.)

Under Probate Code

section 3505, if a petition is unopposed, the Court must issue a decision on the petition at the conclusion of the hearing.

III.

#### DISCUSSION

The Petition sets forth the following:

Minor – George Russell

Guardian ad litem – Julie Russell

Defendants – Barry Brock, M.D. and Cedars-Sinai  
Medical Center (Petition ¶ 10.)

Total

Settlement: \$6,750,000.00

(Attach. 10c)

Total

Settlement to Minor: \$2,934,986.16

(\$2,000,000.00 from Cedars and 934,986.16 from Brock) (Petition ¶ 10b)

In

addition, a Special Needs Trust will be seeded with the amount of \$1,000,000.00

Attorney's

Fees: \$2,117,275.83

(Attach. 17a(2))

Litigation

Costs: \$91,514.00

(Attach. 17a(2))

Medical

Bills: \$43,719.71

following lien reduction (Petition ¶ 12)

TOTAL

TO BE PAID TO MINOR: \$1,562,504.29

+ \$1,000,000.00 Special Needs Trust Seeding. (Petition ¶ 15).

General

Requirements

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Petition on Form

MC-350? Yes

.

Proposed Order on

Form MC-351? Yes

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Proof of service on

other parties? Yes

Type of injury, medical expenses

.

Injuries? George suffered an injury to the vasculature structures of his neck and brain, went into status epilepticus, and suffered profound injury to his brain. George is unable to walk, unable to talk, is blind, has spastic cerebral palsy, and will be completely dependent on others for all of his daily care needs for the remainder of his life. (Petition ¶ 6.)

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Treatment? George's

ongoing care includes 3 different neurologists (for seizures, sleep disorder, & movement disorder), neuro-ophthalmologist, palliative care team, Gastroenterologist (severe GI & feeding issues), Immunologist/Allergist, & twice daily therapies (physical, speech, occupational, & feeding). George requires a full-time caregiver and will require 24-hour caregiving as he grows and ages. (Petition ¶ 7.)

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Medical records

documenting injuries and treatment?

No.

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Negotiated reduction

in medical liens? Yes, relative to the

Medi-CAL lien, Plaintiff is entitled to the statutory reduction which would reduce the lien from \$58,292.95 to \$43,719.71. The parents, out of their remainder of the settlement, have agreed to pay the Medi-CAL lien, all attorney's fees and costs, and of course to seed the Special Needs Trust with \$1,000,000.00. (Attach. 10c.)

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Injuries completely

healed? No. Permanent severe

neurological defects; will be fully dependent on others for all of his personal self-help skills and care, including feeding, dressing, bathing, hygiene, and mobility; will experience a shortened life expectancy. (Attach. 8c.)

Handling of Funds

How are settlement funds to

be disposed of? \$2,934,986.16 to fund future periodic payments for the benefit of George Russell through the purchase of an annuity as shown on the attached Description of Periodic Payments. In addition, a Special Needs Trust will be seeded with the amount of \$1,000,000.00. All annuity payments will be paid into a Special Needs Trust attached to the Petition.

The parents, out of their remainder of the settlement, have agreed to pay the Medi-CAL lien, all attorney's fees and costs, and to seed the Special Needs Trust with \$1,00,000.00.

Attorneys' Fees and Litigation

Costs

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Attorneys' fees

requested? Yes.

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If yes, attorney

declaration including factors under CRC 7.955(b)? No. [must be cured]

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Copy of retainer

agreement? Yes. (Petition, Attach. 17a(2))

IV.

CONCLUSION

Based on the foregoing, the

hearing on the Petition is CONTINUED to Monday, July 27,

2026 at 8:30am to allow Plaintiff to address the above  
defect.

Dated this 21st  
day of July 2026

Hon. Gary

D. Roberts

Judge  
of the Superior Court